

**CALIFORNIA FAIR PLAN ASSOCIATION, et al v VACASA,
LLC**

23CV46841

**PLAINTIFF'S MOTION FOR LEAVE TO FILE SECOND
AMENDED COMPLAINT**

This is a subrogation action arises from a fire-related property damage incident that occurred on or about March 22, 2022, at the residence of Plaintiff California FAIR Plan Association's ("FAIR") Insureds, Richard Quosig Jr. and Andrea Quosig (collectively "Quosigs"), located at 2324 Mokelumne Drive, Arnold, California 95223 ("Property").

Plaintiffs allege that catastrophic fire loss occurred ("fire loss incident") at the Property when a maid from Defendant Vacasa LLC ("Vacasa") used a combustible oven cleaning fluid ("cleaning fluid") in the broiler space of the cooking range ("range"). According to Plaintiffs, the cleaning fluid flowed into the vent holes in the bottom panel of the range and when the maid turned the oven on, the vapors from the cleaning fluid ignited a fire that spread causing extensive damage.

Plaintiffs filed their Complaint on July 25, 2023, then filed a First Amended Complaint ("FAC") on July 27, 2023, due to inadvertently omitting Exhibit "A" from the original filing. Defendant filed an Answer on December 15, 2023. On June 14, 2024, Defendant filed a Cross-Complaint against Electrolux Home Products, Inc. ("Electrolux"). On August 12, 2024, Electrolux filed its own Cross-Complaint against Vacasa.

Now before the Court is Plaintiffs' motion for leave to file a Second Amended Complaint ("SAC"). Plaintiffs assert that it is necessary because they failed to include the necessary facts to support their claim for Gross Negligence and the appropriate cause of action for Plaintiffs' general claim for damages under Private Nuisance.

California Code of Civil Procedure section 473(a) provides:

(1) The Court may, in furtherance of justice, and on any terms as may be proper, allow a party to amend any pleading or proceeding by adding or striking out the name of any party, or by correcting a mistake in the name of a party, or a mistake in any other respect; and may, upon like terms, enlarge the time for answer or demurrer. The court may likewise, in its discretion, after notice to the adverse party, allow, upon any terms as may be just, an amendment to any pleading or proceeding in other particulars; and may upon like terms allow an answer to be made after the time limited by this code.

There is, at present, no trial date set. Pursuant to CRC 3.1324, the moving party must: (a) specify in the moving papers by page, paragraph, and line number the allegations proposed to be added and/or deleted; and (b) include with the moving papers a copy of the proposed amended pleading and a declaration specifying (1) the effect of the amendment(s); (2) why the amendment is necessary and proper; (3) when the facts giving rise to the amended allegations were discovered; and (4) the reasons why the request was not made earlier. Here, Plaintiffs have submitted the supporting declaration of attorney Dominic J. Fiore that complies with the requirements of CRC 3.1324.

A court will generally permit amendment if the proposed amendment relates to the same general set of facts and "it is irrelevant that new legal theories are introduced as long as the proposed amendments 'relate to the same general set of facts.'" (*Atkinson v. Elk Corp.* (2003) 109 Cal. App. 4th 739, 761.) Further, motions for leave to amend a pleading are directed to the sound discretion of the court. (CCP §§ 473(a)(1) and 576.) This discretion, however, is to be exercised liberally in favor of allowing amendments. (*Howard v. County of San Diego* (2010) 184 Cal.App.4th 1422, 1428; *Central Concrete Supply Co v. Bursak* (2010) 182 Cal.App.4th 1092, 1101- 1102.) Courts may permit amendments at any stage in the proceedings, up to and including trial, so long there is no prejudice to the adverse party. (*Atkinson v. Elk Corp.* (2003) 109 Cal.App.4th 739, 761.)

No opposition has been filed.

Accordingly, the Court **GRANTS** plaintiff's motion. Plaintiffs to file SAC within 10 (ten) calendar days, and effectuate service on all defendants.

The Clerk shall provide notice of the Ruling forthwith. The Court intends to sign the submitted Order.

RICE, et al v NELSON, et al

24CV47449

DEFENDANT WENDY McCORMICK'S DEMURRER AND MOTION TO STRIKE

On June 18, 2024, Plaintiffs filed their Complaint against Defendants Sharon Nelson and Mark Nelson (collectively, "Sellers") and Wendy McCormick ("McCormick") arising out of a real estate transaction between Plaintiffs and Sellers.

Defendant McCormick demurs and moves to strike portions of the Complaint. As set forth below, the demurrer is sustained in part and overruled in part. The motion to strike is granted in part and denied in part.

I. FACTS AND PROCEDURAL HISTORY

In February of 2021, Plaintiffs were looking to purchase a new home using McCormick as their real estate agent. McCormick became aware of a property for sale at 974 Laurel Lane, Murphys, California ("Property"). Because of pandemic restrictions, McCormick video walked Plaintiffs through the subject property informed Plaintiffs that the Property was so well maintained that no inspection would even be needed. Plaintiffs insisted on an inspection and used inspector Mark Adelhelm ("Adelhelm"). During the inspection, Plaintiffs learned that Adelhelm was McCormick's spouse which they found alarming because of potential conflicts of interest.

The inspection revealed issues that raised concerns for the Plaintiffs. Sometime around March 3, 2021, a meeting was set up by McCormick where Plaintiffs could meet with Sellers. Plaintiffs' concerns included the working of the solar alarm system, garage door, alarm system, cracks in the pavement outside the garage, stereo wiring, and kitchen appliances. According to Plaintiffs, Sellers reassured them, but failed to tell Plaintiffs about certain repairs, including to the deck, stucco, retaining wall, and irrigation system. According to Plaintiffs, Sellers strategically placed deck furniture and other items to cover up apparent issues.

On March 9, 2021, Plaintiffs and Sellers entered into a contract to purchase the Property and Plaintiffs moved in on March 10, 2021.

In 2022, the area was subjected to significant rainstorms and Plaintiffs began to notice water intrusion at the rear of the Property. Plaintiffs had two contractors inspect and were told the water intrusion was due to the moisture barrier behind the stucco which